

who on behalf of the entity made the general representations that the foreclosure would not proceed, when, or this person's authority to speak. This is insufficient.

Accordingly, the general demurrer to the first cause of action is sustained with leave to amend.

Uncertainty

Defendants additionally demur specially on the ground the complaint is uncertain as to against whom the allegations found in Attachment 9 or the second form complaint cover page alleging general negligence and negligent infliction of emotional distress are alleged. Section 430.10, subdivision (f) authorizes a party against whom a complaint has been filed to object by special demurrer to the pleading on the ground that "[t]he pleading is uncertain. As used in this subdivision, 'uncertain' includes ambiguous and unintelligible." Demurrers for uncertainty are disfavored. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) A demurrer for uncertainty may be sustained when the complaint is drafted in a manner that is so vague or uncertain that the defendant cannot reasonably respond, e.g., the defendant cannot determine what issues must be admitted or denied, or what causes of action are directed against the defendant. (*Ibid.*) Demurrers for uncertainty are appropriately overruled where "ambiguities can reasonably be clarified under modern rules of discovery." (*Ibid.*)

There are no cause of action attachments for the general negligence or negligent infliction of emotional distress causes of action. Further, the conclusory allegations with respect to violations of the HBOR are not clearly plead as a cause of action against any defendant. It is unclear whether the plaintiffs intend to allege the additional causes of action identified and the basis for those causes of action against a given defendant. Accordingly, the special demurrer is sustained with leave to amend.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** July 2, 2026.
(Judge's initials) (Date)

(34)

Tentative Ruling

Re: **Arkelian v. HumanGood Fresno**
Superior Court Case No. 25CECG01357

Hearing Date: July 7, 2026 (Dept. 403)

Motion: By Defendant to Compel Arbitration

Tentative Ruling:

To grant the motion to compel arbitration and order plaintiff Lurlynn Arkelian to arbitrate her claims against defendants. To deny the motion to compel Jeffrey Arkelian to arbitrate his claims and to stay this action pending the completion of arbitration.

Explanation:

Plaintiff Lurlynn Arkelian and Jeffrey Arkelian filed the present action arising from a trip and fall on the premises of The Terraces at San Joaquin Gardens. Plaintiffs are alleging causes of action for premises liability and general negligence after plaintiff Lurlynn Arkelian fell due to a sandbag and lost consciousness. The trip and fall was witnessed by plaintiff Jeffrey Arkelian.

Defendant HumanGood Fresno dba The Terraces at San Joaquin Gardens ("HumanGood") moves to compel arbitration pursuant to Plaintiff Lurlynn Arkelian's agreement to do so in the Arbitration Agreement¹ signed in connection with her residence at defendant's facility. (Isfeld Decl. ¶ 2, Ex. A.)

A trial court is required to grant a motion to compel arbitration "if it determines that an agreement to arbitrate the controversy exists." (Code Civ. Proc., § 1281.2) However, there is "no public policy in favor of forcing arbitration of issues the parties have not agreed to arbitrate." (*Garlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505.) Thus, when a motion to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine: (1) whether the agreement exists and, (2) if any defense to its enforcement is raised, whether it is enforceable. The moving party bears the burden of proving the existence of an arbitration agreement by a preponderance of the evidence. The party claiming a defense bears the same burden as to the defense. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413-414.)

The moving party has the burden of proving the existence of a valid arbitration agreement. (*Pinnacle Museum Tower Assn v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) A party opposing arbitration has the burden of showing that the arbitration provision cannot be interpreted to cover the claims in the complaint. (*Aanderud v. Superior Court* (2017) 13 Cal.App.5th 880, 890.) Unless there is a dispute over

¹ Plaintiffs' objections to the declaration of Denise Isfeld are overruled for purposes of this motion, as plaintiffs are not challenging the authenticity of the Arbitration Agreement attached thereto.

authenticity, the mere recitation of the terms is sufficient for a party to move to compel arbitration. (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793.)

In support of the motion, defendant presents the Arbitration Agreement wherein plaintiff agreed to arbitrate "any and all claims or disputes arising from or related to your CARE AND RESIDENCE AGREEMENT or to your rights, obligations, care, or services at the Community" (Isfeld Decl., Ex. A, Arbitration Agreement, ¶ A.) The agreement additionally specifies that it applies to claims against defendant, plaintiff, or any other individual or entity and includes personal injury or wrongful death claims. (*Ibid.*) The agreement is signed by plaintiff Lurlyne Arkelian.

Plaintiffs argue their premises liability and negligence claims do not arise out of her care received at the facility or services provided and are thus outside the scope of the claims plaintiff agreed to arbitrate. This argument disregards the language of the agreement encompassing personal injury claims. The court finds defendant has met its burden to demonstrate the existence of an agreement to arbitrate the claims brought by Lurlyne Arkelian against both defendant and Barken Development & Construction, LLC. Defendant has not met its burden in demonstrating the existence of an agreement for Jeffrey Arkelian to arbitrate his claims as he is not a party to the agreement and has not agreed to arbitrate his claims against defendant or other individuals or entities relating to his mother's residence with defendant.

As such, the burden shifts with respect to Lurlyne Arkelian to demonstrate a defense to enforceability.

Plaintiff submits that the agreement is unenforceable because it is unconscionable. If the court finds as a matter of law that a contract or any portion of it was unconscionable at the time it was made, the court may refuse to enforce it, or may enforce the contract without the unconscionable provisions, or limit their application to avoid any unconscionable result. (Civ. Code § 1670.5, subd. (a).) There are two prongs considered in this analysis: procedural unconscionability and substantive unconscionability. Both must be present for a court to exercise its discretion to refuse to enforce an arbitration agreement under the doctrine of unconscionability. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113.) They need not be present in equal amounts; essentially a sliding scale is used, and where there is substantive unconscionability, less procedural unconscionable need be shown. (*Id.* at pp. 113-114.)

Plaintiff asserts that the Arbitration Agreement is procedurally unconscionable due to the Care and Residency package consisting of 342 pages of standardized, provider-drafted form, presented in a "adhesion setting" with information and bargaining disparities. Plaintiff's opposition is limited to argument and is unsupported by evidence in the form of a declaration. Moreover, the language of the agreement allows the resident to withdraw their agreement to arbitrate and there is no indication on the face of the agreement that the resident was required to sign in the first instance. In the absence of evidence to meet plaintiff's burden to demonstrate the agreement is unconscionable, plaintiff has not met her burden.

In the absence of a finding of unconscionability, the court finds that there is an enforceable written agreement to arbitrate. Accordingly, the motion to compel arbitration is granted as to plaintiff Lurlynn Arkelian. The court orders the derivative claims of Jeffrey Arkelian remaining in this action stayed pending the outcome of the arbitration proceeding.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** July 6, 2026.
(Judge's initials) (Date)